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File No.: EXP202213346

RESOLUTION No.: R/00322/2023

Considering the complaint filed on December 7, 2022, before this Agency by A.A.A. (hereinafter the complainant), against SERVICIOS ESPECIALES, S.A. (hereinafter the respondent), for not having duly attended to their right of access and erasure.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The complainant exercised the rights of access and erasure against the respondent with NIF A11001450, and their request, as stated by the complainant, did not receive the legally established response.

The complainant requests the rights of access and erasure specifying the points to which they refer.

Regarding the right of access, they request:

“...That the right of access be provided to them free of charge by the data controller within one month from the receipt of this request, and that the following information be sent to the above-mentioned address (email or postal address):

- The information/evaluation obtained from me in the training courses I have attended at Servisa Madrid.
 - A copy of my personal data that is subject to processing by the data controller.
 - The purposes of the processing, as well as the categories of personal data being processed.
 - The recipients or categories of recipients to whom my personal data have been communicated, or will be communicated, including, where applicable, recipients in third parties or international organizations.
 - Information about the appropriate safeguards relating to the transfer of my data to a third country or to an international organization, if applicable.
 - The expected retention period, or if not possible, the criteria for determining this period.
 - If there are automated decisions, including profiling, significant information about the logic involved, as well as the importance and expected consequences of such processing.
 - If my personal data has not been obtained directly from me, the available information about its origin.
- The existence of the right to request rectification, erasure, or limitation of the processing of my personal data, or to object to such processing.

The right to lodge a complaint with a supervisory authority...”

And, regarding the right of erasure, they specify:

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“...I request: That the erasure of these personal data that are not necessary for our employment relationship be agreed upon:

Photocopy of the Family Book.

Work history. -Personal data of my family members.

Certificate of Employment and contacts of the companies where I worked.

Result of the personality test that was conducted on me, as I understand it violates my right to privacy...”

The complainant provides various documents related to the complaint filed before this Agency and regarding the exercise of the rights exercised.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed before the AEPD, consisting of transferring them to the Data Protection Officers designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the

complaint was forwarded to the respondent entity for analysis and response to the complainant and this Agency within one month.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow understanding that the complainant's claims were satisfied. Consequently, on February 22, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing and informed the parties that the maximum period to resolve this procedure, which is understood to have commenced with the said admission agreement, will be six months.

The aforementioned agreement granted the respondent entity the opportunity to be heard, so that within ten working days it could present any allegations it deemed appropriate. This entity made, in summary, the following allegations:

They begin by providing a chronological account of the events between the parties, mentioning previous complaints and emphasizing that the poor relationship between the parties is the cause of the complaint.

Finally, they provide a letter sent to the complainant to address one of the points of the right of access that, according to the exchanged information, was still pending. This point is the list of persons or entities to whom the complainant's data had been provided. This is evidenced in that letter.

FOURTH: The allegations presented by the respondent have been forwarded to the complainant, so that, within fifteen working days, they may formulate any allegations they consider appropriate. The complainant denounces the stance maintained with the respondent and emphasizes to this Agency their habitual practice, which, according to them, the respondent has regarding the requests it receives.

Namely:

"...The company always follows the same "modus operandi," both in the administrative and judicial avenues:

It restricts a right, whether labor or administrative.

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The worker requests it in writing.

Servisa denies it in writing or verbally.

The worker is compelled to file the corresponding complaint or lawsuit before the competent authority within the legally established timeframes, at their own expense.

Once the corresponding citation arrives, they let time pass, or not, depending on their interests, and before they are fined or sanctioned by the authority, they restore the right to free themselves from the corresponding fine/sanction/sentence.

This tactic is detrimental to the worker, due to the delays in the timelines caused by the lack of resources in the Courts and in administrative matters. This results in the worker being deprived of their rights for a long period of time, a circumstance that Servisa exploits for its own benefit. Later, they turn the tables and if the worker does not desist from their interest in continuing to report and sue to have their rights respected, they claim that the worker is using the means of the Public Administrations and Courts in bad faith, when, in reality, it is they themselves who force you to use such channels..."

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of section 2 of article 56 in relation to section 1 f) of article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in article 47 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter LOPDGDD).

SECOND: In accordance with the provisions of article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in article 57, including the enforcement

of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating the reasons for them.

Correspondingly, article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have designated a data protection officer, article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, it was forwarded to the responsible entity for analysis, requiring a response to this Agency within one month and proving that the due response had been provided to the complainant, in the event of exercising the rights regulated in articles 15 to 22 of the GDPR.

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The aforementioned admission agreement determines the initiation of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. Once this period has elapsed, the interested party may consider their complaint to be upheld.”

It is not deemed appropriate to clarify administrative responsibilities within the framework of a sanctioning procedure, the exceptional nature of which implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure, the guarantees and rights of the complainant are duly restored.

THIRD: The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

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The communication addressed to the interested party regarding their request must be expressed in a

concise, transparent, intelligible, and easily accessible manner, using clear and simple language. In relation to the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the interested party may request the information referred to in the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive on more than one occasion during the period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that entails a disproportionate cost, which must be borne by the affected party.

FOURTH: Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The interested party shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase the personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the interested party withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the interested party objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the interested party objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the controller, taking into account the available technology and the cost of its implementation, shall take reasonable steps, including technical measures, to inform controllers who are processing the personal data of the interested party's request for erasure of any links to those personal data, or any copies or replicas thereof.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

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- a) to exercise the right to freedom of expression and information;
- b) for compliance with a legal obligation requiring the processing of data imposed by Union Law or the laws of the Member States applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the right referred to in paragraph 1 may make it impossible or seriously hinder the achievement of the objectives of that processing; or
- e) for the formulation, exercise, or defense of claims.

FIFTH: In accordance with Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject

has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

Like the other rights of the data subject, the right of access is a highly personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization.

The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

In the case analyzed here, the claimant exercised their right of access and erasure on the grounds that they had not been addressed.

According to the documentation exchanged between the parties and with this Agency, the right to erasure must have been addressed since neither the claimant nor the respondent mentions it again after the admission of the claim.

However, the same does not apply to the right of access, which the claimant considers, in principle, to have been addressed incompletely. They state that they lack the list of individuals and entities to whom their data has been provided.

In response to this request, the respondent, in the submissions made after the admission of the claim, addresses the right and sends the list to the claimant.

In summary, throughout the procedure, the right to erasure has been addressed in principle, and part of the right of access has been addressed, lacking only the list of entities and individuals to whom the data had been provided. Later, after the admission of the claim, the right of access has been completed.

Based on the above, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, and clarifying that this Agency does not enter into possible conflicts between the parties or the intentions that may motivate certain requests, in view of what has been requested and what has been addressed, we consider that the rights have been addressed throughout the procedure and therefore the claim is estimated for formal reasons.

In light of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ESTIMATE for formal reasons, the claim made by A.A.A. against the entity SERVICIOS ESPECIALES, S.A. However, it is not appropriate to issue a new certification by said entity, as the response was issued late, without requiring additional actions by the controller.

SECOND: TO NOTIFY this resolution to A.A.A. and to SERVICIOS ESPECIALES, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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